

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable Julie R. Culver
Judge of the Superior Court
County of Monterey
240 Church Street
Salinas, CA 93901

Re: Robledo Jr, Joel
CDC No.: BF6760
Case No.: SS161957A
Date of Sentence: March 6, 2018

Dear Honorable Julie R. Culver:

The purpose of this letter is to provide the court with authority to resentence Joel Robledo, Jr. pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Robledo Jr was sentenced in 2018, and was convicted of section 245, subdivision (a)(1), Assault Deadly Weapon. The trial court sentenced inmate Robledo Jr on March 6, 2018. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to inmate Robledo Jr's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Robledo Jr's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Lydia M. Villarreal, Monterey County Presiding Judge
Monterey District Attorney
Public Defender

BF 6760

FELONY ABSTRACT OF JUDGMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: MONTEREY		BF 6760 		-A ELECTRONICALLY FILED BY Superior Court of California, -B County of Monterey On 03/08/2018 -C By Deputy: Middleton, Meghan -D			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Joel Jr Robledo						DOB: 11/28/1976	
AKA:							
CII NO.: A10398402							
BOOKING NO.:		☐ NOT PRESENT					
FELONY ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT					
☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT							
DATE OF HEARING 3/6/2018		DEPT. NO. Department 5		JUDGE Julie R. Culver			
CLERK Elena Soto		REPORTER Linda Parks-CSR#9625		PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING Brenda Marshall			
COUNSEL FOR PEOPLE Brian Jones		COUNSEL FOR DEFENDANT ☒ APPOINTED Scott Erdbacher					

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
_____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/2 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO PART 5)	60 DAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MO.
02	PC	245	Assault: Deadly Weapon	2016	01/30/18			X	L						X	X	02	00
					/ /													
					/ /													
					/ /													
					/ /													
					/ /													

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S", or "PS"	ENHANCEMENT	TIME IMPOSED, "S", or "PS"	ENHANCEMENT	TIME IMPOSED, "S", or "PS"	TOTAL
02	PC186.22(b)(1)(c)	10y					10 00
02	PC12022.7(a)	3y					03 00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S", or "PS"	ENHANCEMENT	TIME IMPOSED, "S", or "PS"	ENHANCEMENT	TIME IMPOSED, "S", or "PS"	TOTAL

4. ☒ Defendant sentenced ☒ to county jail per 1170(h)(1) or (2)
☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☐ per PC 667(b)-(l) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6.	TOTAL TIME ON ATTACHED PAGES:	17	00
7.	☐ Additional indeterminate term (see CR-292).		
8.	TOTAL TIME:	17	00

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: Joel Jr Robledo

SS161957A

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$5,100 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$5,100 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.
 Case B: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.
 Case C: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.
 Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☒ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ *Victim name(s), if known, and amount breakdown in item 13, below.

☐ *Victim name(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$40.00 per PC 1465.8. e. Conviction Assessment: \$30.00 per GC 70373. f. Other: \$ per (specify):

10. TESTING: ☒ Comply with PC 296 ☐ AIDS pursuant to PC 1202.1 ☐ other (specify):

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): 186.30

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify):

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUALS	LOCAL CONDUCT
A	527	459	68 (12933 [x] 2933.1 [] 4019
B			[] 2933 [] 2933.1 [] 4019
C			[] 2933 [] 2933.1 [] 4019
D			[] 2933 [] 2933.1 [] 4019
Date Sentence Pronounced 03 06 2018		Time Served in State Institution DMH CDCR CRC	

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c.
 Defendant's race/national origin: HIS

15. EXECUTION OF SENTENCING IMPOSED

- a. ☒ at initial sentencing hearing
 b. ☐ at resentencing per decision on appeal
 c. ☐ after revocation of probation
 d. ☐ at resentencing per recall of commitment (PC 1170(d).)
 e. ☐ other (specify):

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☒ other (specify): North Kern State Prison, Delano, CA

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

Elena Soto Elena Soto

DATE

3/7/2018